

		Plaintiff notes that Defendant Moreira is not a party to the contract between Defendant XL Funding and Plaintiff, and argues that Moreira lacks standing to enforce the agreement. But, the contract language regarding judicial reference is not limited only to parties to the contract. It expressly provides that "any claim will be resolved by a general reference proceeding." Therefore, the court finds that Moreira has standing to enforce the judicial reference clause. Defendants request that this matter be resolved by a general reference before the Hon. Yvette M. Palazuelos (Ret.) (presently affiliated with Judicate West) as referee, with the referee's fees split equally between the parties (50% by XLF and 50 % by OC CARS), and the prevailing party to be awarded the balance. Plaintiff in opposition argues that Plaintiff lacks any resources to pay for a reference, and cites to a declaration of Kamran Afrasiabi. However, no such declaration was filed. Plaintiff has submitted no evidence of its financial condition. The court thus finds Defendants' request for the parties to split the referee's fees to be fair and appropriate. Plaintiff also contends that the court cannot allow Defendants to unilaterally select the referee. But, Plaintiff does not offer any specific objections to Hon. Yvette M. Palazuelos (Ret.) of Judicate West. The court is therefore inclined to appoint Judge Palazuelos as the referee, but will entertain discussion at the hearing on this matter. Accordingly, Defendants' motion to appoint a judicial referee is granted. Defendants are ordered to provide for the court's review a proposed order, utilizing Judicial Council Form ADR-110. The proposed order should include all the information required by California Rules of Court, rule 3.902. DEMURRER The ruling on the motion for appointment of referee renders moot Plaintiff's demurrer to the Cross-Complaint. The case management conference is hereby vacated. The court sets a status conference re: judicial reference for October 3, 2025, at 9 am in Department C21. Defendants shall give notice of the ruling and of the status conference.
55	Pinon v. Joy, et al. 30-2021-01216986	NO TENTATIVE RULINGS